# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 17/05/2023 - Internal note - sent by email

**File Note**

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|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

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|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

Hi Natalie,

We have received advice from Dilhari and the NDIS CMAT Team that first case conferences of this type of matter be listed for a TDH before DP Mischin.

Could you please advise if DP Mischin would conduct a TDH.

There are two other reviews that appear associated with this one. They are 2023-3363 and 2023-3364.

Could you please advise if DP Mischin would have these associated or linked.

Kind regards Natalie

**Entered By**

| | |
|---|---|
| **Officer** | Natalie M[redacted] |
| **Date Entered** | 17/05/2023 |
| **Time Entered** | 4:09PM |

**Email File Note**

Natalie D[redacted] ([redacted] aat.gov.au)

| | |
|---|---|
| **Sent By** | Natalie M[redacted] |
| **Date Sent** | 17/05/2023 |
| **Time Sent** | 4:18PM |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 27/05/2023 - Internal note

### File Note

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|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

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|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

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| No | Refer to Deputy Registrar |
| No | Relisting Required |

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| **Listing Details** | |
| **Note** | System populated Date s29 Notice Sent '26/05/2023' and TDocs Due Date '30/06/2023' . (SysCode: S29) |
| **Entered By** | |
| **Officer** | Natalie D s47E(c) |
| **Date Entered** | 27/05/2023 |
| **Time Entered** | 7:30PM |
| **Email File Note** | |
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 31/05/2023 - Phone Note

### File Note

**Category** Phone Note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

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|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

TO received a call from App, Simon Reid on 30/05/2023. Mr Reid was phoning to enquire why his, his wife, Vida, and their company, FFG's, listing on 08/06/2023 had been vacated. He was seeking further clarification, advising this process had been going on since December last year and he and his wife had not worked since that time.

TO responded to Mr Reid advising she was not familiar with the matters and would like to seek further clarification from STO before providing any further details to him.. TO advised Mr Reid she would seek advice that day and would attempt to have someone call him back. TO spoke with Snr Associate, Natalie D who provided some information. TO called Mr Reid back to say that she needed to speak with STO, Jessica P, who would be in the following day (31/05).

Mr Reid was happy to wait for a call back on 31/05, providing his contact number - 0409 751 638.

TO to speak with STO, Jessica P.

**Entered By**

**Officer** Fiona C[redacted]

**Date Entered** 31/05/2023

**Time Entered** 12:29PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 06/06/2023 - Phone Note

**File Note**

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|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

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|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

TO received a call from Pascal Mousa, NDIS Commission, on 06/06/2023 at 10.00am, requesting an update in relation to the outcome of the request for an EOT to submit T-Docs. TO advised Pascal that due to the public holiday in WA yesterday (05/06), today was the final day to receive any correspondence from Applicant Rep with regard to their response to request for EOT. If they do not oppose, then a decision would be made and the parties advised.

Pascal also mentioned the TDH on 08/06/2023 being vacated. TO confirmed that was correct.

Pascal advised that a reviewable decision in relation to the FFG matter (2023/3364) would likely be available this week.

**Entered By**

| | |
|---|---|
| **Officer** | Fiona C s47E(c) |
| **Date Entered** | 06/06/2023 |
| **Time Entered** | 12:09PM |

**Email File Note**

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|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 07/06/2023 - Instructions to Issue Direction/Order/Decision - sent by email

### File Note

**Category** Instructions to Issue Direction/Order/Decision

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** INTERLOCUTORY APPLICATION. NO RESPONSE FROM APPLICANTS.

Dear Natalie

This email related to both 2023/3361 & 2023/3363.

The applicants were sent correspondence seeking their view on the respondent's request to extend this time within which to file the T-Docs. A response was due by 5/6/2023.

No response has been received.

Can you please refer this matter to the DP to make a decision on the interlocutory application?

Kind regards

Jessica

**Entered By**

**Officer** Jessica P[redacted]

**Date Entered** 07/06/2023

**Time Entered** 6:56PM

**Email File Note**

Perth Registry (perth.registry@aat.gov.au)

**Sent By** Jessica P[redacted]

**Date Sent** 07/06/2023

**Time Sent** 7:00PM

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 14/06/2023 - MST Note

**File Note**

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|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

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| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Signed EOT to file T-Docs |

| | |
|---|---|
| View | 2023 3361 Reid - EOT order - signed.pdf |

**Entered By**

| | |
|---|---|
| **Officer** | Natalie D s47E(c) |
| **Date Entered** | 14/06/2023 |
| **Time Entered** | 12:58PM |

**Email File Note**

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|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 06/07/2023 - Internal note - sent by email

### File Note

**Category** Internal note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** INTERLOCUTORY APPLICATION. REQUEST FOR EOT TO FILE T-DOCS.

Dear Natalie

The Respondent has filed a new interlocutory application for an extension of time to file the T-Docs.

The Applicants have have opposed the request.

Can you please provide the application to the DP?

Kind regards

Jessica

View 2023_3361 & 2023_3363 Request for extension of time to lodge section 37 documents.pdf
View 2023_3361 & 2023_3363 Objection to request for EOT to file T-Docs.pdf

**Entered By**

**Officer** Jessica P[redacted]

**Date Entered** 06/07/2023

**Time Entered** 11:23AM

**Email File Note**

Perth Registry (perth.registry@aat.gov.au)

**Sent By** Jessica P[redacted]

**Date Sent** 06/07/2023

**Time Sent** 11:27AM

| | |
|---|---|
| **From:** | MOUSSA, Pascal |
| **To:** | Perth Registry |
| **Cc:** | MAPLEDORAM, Donna; MCGRILLEN, Hilda; Tom Monks |
| **Subject:** | Request for extension of time to lodge section 37 documents - 2023/3361 & 2023/3363 - Vida Reid / Simon Reid and NDIS Commission [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] |
| **Date:** | Thursday, 6 July 2023 7:22:44 AM |
| **Attachments:** | Re Extension for lodgement of T-Documents in Vida Reid (20233361) Simon Reid (20233363) AAT matters SECOFFICIAL.msg |

EXTERNAL EMAIL
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."

Dear Natalie

I am writing in relation to the AAT matters of Vida Reid (2023/3361) and Simon Reid (2023/3363).

The NDIS Commission is presently required to lodge all documents required under section 37 of the AAT Act (T-Documents) by 7 July 2023.

In preparing to meet this deadline, the NDIS Commission has identified a voluminous amount of potentially relevant documents in its holdings; it is working at speed to review and collate them for lodgement. Unfortunately, this process is taking a considerable amount of time (given the significant number of documents), and it is further complicated by the presence of legal advice and other confidential information in the identified documents. (The NDIS Commission will likely need to seek a confidentiality order over such material and is reviewing the documents carefully to ensure all confidential information is appropriately identified).

In light of these circumstances, the NDIS Commission seeks a short extension of two weeks (until 21 July 2023) for it to lodge the T-Documents in both matters listed above.

The NDIS Commission has sought the Applicants' view on the proposed extension, and both have objected. **Attached** is the response from the Applicants' lawyer, Mr Tom Monks, for your reference.

If you need any further information to process this request for an extension, please let me know.

Kind regards

**Pascal Moussa**
**Lawyer**
**Legal Services and Internal Integrity Division**

NDIS Quality and Safeguards Commission

**P:** 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au
www.ndiscommission.gov.au

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The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

| | |
|---|---|
| **From:** | Tom Monks |
| **To:** | MOUSSA, Pascal |
| **Cc:** | MCGRILLEN, Hilda |
| **Subject:** | Re: Extension for lodgement of T-Documents in Vida Reid (2023/3361) & Simon Reid (2023/3363) AAT matters [SEC=OFFICIAL] |
| **Date:** | Wednesday, 5 July 2023 3:56:17 PM |

Dear Ms Moussa

We refer to the above matter and your email below.

Given that the Commission had sufficient time and resources to attend to the lodging of material documents pursuant to section 37 of the *Administrative Appeals Tribunal Act*, our clients have instructed that they both object to the extension of time to lodge the T-Documents.

Kind regards

Tom Monks | Legal Practitioner Director
LPN 5512580
phone +61 (08) 6255 5737
email tom@tomandcolegal.com.au
office 45 Delawney Street, Balcatta, WA 6021
web www.tomandcolegal.com.au

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**From:** "MOUSSA, Pascal" <Pascal.MOUSSA@ndiscommission.gov.au>
**Date:** Wednesday, 5 July 2023 at 10:01 am
**To:** Tom Monks <tom@tomandcolegal.com.au>
**Cc:** "MCGRILLEN, Hilda" <Hilda.MCGRILLEN@ndiscommission.gov.au>
**Subject:** Extension for lodgement of T-Documents in Vida Reid (2023/3361) & Simon Reid (2023/3363) AAT matters [SEC=OFFICIAL]

Hi Tom

I refer to the above AAT matters of Mrs Vida Reid and Mr Simon Reid.

As you know, the NDIS Commission must lodge all documents required under section 37 of the AAT Act (T-Documents) by 7 July 2023.

The NDIS Commission has identified a voluminous amount of potentially relevant

documents in its holdings and is working at speed to review and collate them for lodgement. Unfortunately, this process is taking a considerable amount of time (given the significant number of documents located), and it is further complicated by the presence of legal advice and other confidential information in the documents. (The NDIS Commission will likely need to seek a confidentiality order over such material and is, accordingly, having to review the documents very carefully to ensure all confidential information is appropriately identified).

In light of these circumstances, the NDIS Commission will be seeking a short extension of two weeks (until 21 July 2023) for it to lodge the T-Documents in both matters listed above.

Could you please let me know by **COB today** whether you consent or object to the proposed extension as I will need to inform the AAT of your position when making the request for an extension. I contacted your office earlier this morning to speak with you, but was informed you were not available.

If you would prefer to discuss this matter via phone call, please feel free to give me a call today.

Kind regards

**Pascal Moussa**
**Lawyer**
**Legal Services and Internal Integrity Division**

NDIS Quality and Safeguards Commission

**P:** 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au
www.ndiscommission.gov.au

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# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 19/07/2023 - MST Note

### File Note

| | |
|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

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|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

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|---|---|
| **Note** | File note - Interlocutory Hearing 19/07/23 |

View File Notes - Interlocutory Hearing 19.07.23.pdf

**Entered By**

| | |
|---|---|
| **Officer** | Natalie D s47E(c) |
| **Date Entered** | 19/07/2023 |
| **Time Entered** | 4:13PM |

**Email File Note**

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|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

| FILE NOTE | | |
|---|---|---|
| **DATE** | 19 July 2023 | |
| **FILE NO.** | 2023/3361 & 2023/3363 | |
| **PARTIES** | Reid & Commissioner, NDIS Quality and Safeguards Commission | |
| **MEMBER** | Deputy President Mischin | |
| **HEARING** | Interlocutory hearing at 1:00pm | |
| **ATTENDEES** | **Applicant:**<br>Vida Reid<br>Simon Reid<br><br>**Representative:**<br>Jason Raftos – Tom & Co. Lawyers<br>08 6255 5737 | **Respondent Representative:**<br>Mr Andrew Dillon – AGS<br>s47F<br><br>**Respondent:**<br>Pascal Moussa – NDIS Commission<br>s47F |

Hearing commences 12:59pm

DP Takes appearances. This appearance today arises out of the A's declining to agreed to the EOT to file the T-Docs. There are a number of housekeeping matters that can be dealt with today as well. Confirmation as to what is happening more broadly. There is an application 2023/3364 in respect FFG. That has now been withdrawn

JR Yes, correct.

DP there is a subsequent application lodged, JR are you representing FFG?

JR Yes

DP There is an intention to have the decision in that matter reviewed as well, previously all 3 filed were linked together in order to proceed concurrently. JR do you intend for all 3 matters to proceed together.

JR No objection to the matters being linked.

DP We will link them then, they are related. Sensible to proceed together. We will in due course link those together. The issue here is the filing of T-Docs, the latest application from FFG was filed on 26 June, so not due until 27 July. We will flag the linking of those matters and will come back to that. AD any issues?

AD I don't have instructions, don't see that it would be. I'll confirm with PM

PM No issue.

DP Thank you both for confirming. So we have the T-Docs in respect of the two Reid applications that were to be lodged on 10 May and there had been an EOT granted to 7 July. A further EOT requested. Position AD?

AD DP, the issue has not changed since the original application for an EOT, that is there are a great number of documents approx. 900, many of them we believe will require an application for confidentiality orders, on 11 July 2023, the R instructed the AGS to act in all 3 matters and with that, the responsibility was passed to AGS. The lawyer with carriage has been working to produce them, but because of the volume and complexity and because we've only had carriage for a week, we've not been able to produce them yet or determine what s35 orders will be seeking are. There may be different categories of documents that required s35 orders, it's a large task. We are sympathetic to the A's and we understand they're opposing the EOT. We simply cannot meet the deadline. I'm pleased that you've talked about linking because having the 3 together may mean we can simplify the T-Docs by having a main set in the FFG and smaller bundles in the other Reid matters. We can't

physically meet the deadline but it is important and in the interests of the parties that the T-Docs be correct. There isn't much more to say about that.

DP A couple of things. There was a set of submissions filed by the A filed on 17 July. The IR decision made on April had a considerable amount of material available at that point and there should have been disclosure of the relevant materials required. So the R has had since May to sort this out. I understand you've only had the matter a week but the R doesn't seem to have attended to its responsibilities under the legislation. Are you able to say anything about that?

AD I can't comment I'm afraid.

DP When do you expect the exercise to be completed?

AD We are asking for an EOT until 7 August

DP I understand the EOT was until 21 July, in 2 days time. When was the request for 7 August made?

AD It wasn't, I'm making that application now.

DP What date?

AD 7 August

DP Monday, alright. I understand that you have a core bundle that's common to all 3, filed in the FFG matters.

AD Yes, we would refer to them as T1, T2, T3 then separate bundle for each application.

DP The need for confidentiality, on what basis are you seeking s35, LPP or something else? Details of witnesses or what?

AD We've identified docs that are covered by LPP, there's a criminal charge that is being deal with separately, I can't say that we've yet identified docs relating to that, but we foreshadow that we may.

DP At what stage are you seeking the confidentiality. In respect of confidentiality are we talking..

AD Could be combination oof any of those, there may be different categories of s35 that we seek, it may just non-publication or it may be that lawyers for the A's see them but not the A's themselves. I'm not across it yet to specify, it may be one or more of those categories

DP In your estimation, we're talking potentially 900+ docs.

AD Yes, that's what I'm informed.

DP Ok is there anything further to say AD?

AD No, DP

DP Ok, JR?

JR I'd like to make some submissions, but it is completely unacceptable that the T-Docs are the responsibility of AGS, they're not, they are a responsibility of the R. My clients are quite angry about this, they say they're' innocent, this has affected their credibility, their reputation. There's no excuse that there's a voluminous docs, this is not acceptable. What is concerning is that we don't have an application for the EOT to extend. We only have a vague email from PM 2 days before the due date. Its several months after the decision. The R is in default, it treats the AAT with disrespect. What's concerning that there's been no production of documents. The AAT Act doesn't prevent docs being produced in tranches. The orders have been ignored and treated flippantly. My client's want this moving. 7 August is unacceptable. They will have to put more people towards this, my clients' agreed to an initial EOT, now blowing out to the 7 August. I'm happy to answer questions, those are our submissions.

DP Thank you. If you can indicate what the current position is, it might be helpful. The usual position when there are criminal charges, a civil matter will have to be put on hold. The two

are connected, there are serious charges, closely related to the business practices which form the foundation for the banning order. If there is a finding/ verdict of guilt on the basis of beyond reasonable doubt, it goes to the merits of the banning order. How do you suggest this proceeds. What state are the criminal charges in right now. Is there an indictment? When are the proceedings likely to be resolved.

JR They haven't had a committal yet. I'm reluctant to make comment at this stage.

DP I flag it because it needs to be considered at some point. It may have a bearing on the disclosure of materials. There are a number of issues that arises out of this. I flag it for consideration. The parties need to assist the T through that. There hasn't been a committal for trial yet.

JR Correct, we'll confer with AGS in relation to whether agreement can be reached. We may agree that certain docs not be produced, we can confer with AGS.

DP I think you make sound points about how the R has proceeded so far, but it has taken some time and one would have hoped for more progress and I am concerned about the delay, however there may be complications beyond our control regarding the criminal proceedings. Is it practical to produce docs in tranches. If we refuse the EOT what you have us do?

JR Its not for the AAT to do anything, its up to the R to produce the docs forthwith.

DP The A's need the T-Docs and the T needs the docs but the A would need to have the docs in the correct format and order. If they're not ready, they're not ready. It leaves the exercise in an unsatisfactory position but if I refuse the EOT, where are we then?

JR Its not a costs jurisdiction, its should be a criticism on the R but that's the nature of the beast.

DP I agree, I'm not criticising AD and no PM either, it is what it is, there could be good reasons why this has happened and if the task of getting ready for a review, briefing AGS should have happened earlier but we are where we are. AD, can you say anything about that? We need adherence to a timetable and if not, we need sufficient notice about how to address it. AD?

AD I the criticism of our side is reasonable, T directions should be complied with, AGS's potion is that we endeavour to do so, I'm not sure we'll be able to produce in tranches, but if beneficial we may be able to if there's no possibility of confidentiality orders to be sought. My own opinion is that the civil matter will be in abeyance if the criminal matter is relevant. It seems to me that if we were extended to 7 August, we would comply or try to comply earlier and provide a set of T-Docs that were of use to the T and the A. Not sure if drip feeding would be useful.

DP My inclination is that having instalments which may not be in order can only lead to confusion and may require a re-ordering. This might cause difficulty, it may be more productive to produce it all at once. My inclination is to grant the EOT to 7 August but with no request for further extensions, hopefully shortly thereafter an application for confidentiality identifying the docs to be protected and submissions on the basis of confidentiality. I'd like the next TDH, the parties to turn their minds to the question of what happens to the T proceedings pending the resolution of the criminal proceedings. Some submissions prepared in respect of that. Its one thing to get the material together but if its not going to be used for 6-12 months, then the urgency.. determine how we proceed. Anyone pm that?

PM Can I raise something? In relation to JR's position. There seems to be an assumption that the Commission is not taking this seriously, this is not the case, I understand that this has impacted the A's business activities. The Commission has not delayed since receiving the applications, the Commission has actioned, it is well over 900 documents, well over 1000. Many of the 900 contain further attachments, the number is well over 1000. In relation to

the point needing to know what material this decision is based upon, prior to the internal review decision, the IR wrote to the A, and changed the IRD. It wrote to the A, and the material based on that decision. It afforded the A to make submissions of that material. It invited the A to make submissions, this is not a criticism. The A are aware of the material upon which the decision was made. About the stay while criminal proceedings. This has come up before, the A have raised the issue of a stay and in other matters, the stay has been granted. I just raise it for the T's attention. The last point is in relation to briefing AGS, I delay that accompany the decision to brief AGS, we could not hand over the T-docs until AGS was engaged. I hope this illuminates the issues, we are well aware of our model litigant obligations.

DP Thank you PM, I appreciate your explaining the course of events and the position of the Commission. I've indicated what I propose, JR do you have anything else to say?

JR DP, two things, in relation to the FFG, the date of production is 27 July. I accept what you've said and what AD said about producing in tranches. My clients' are keen to see some documents. Perhaps production could be on 27 July.

DP I think its 24 July.

JR I understand sooner rather than later. The second issue is that ..

DP thank you JR, I can appreciate the applicants position, I think I need to take a pragmatic response and hope we don't have further delays. The question of connection of the matters so they can proceed side by side. I'll order that the original FFG matter had been associated, but now withdrawn. Application 2023/3363, having been withdrawn, be disassociated with the other two. Application 4494 FFG and application 3361 and 3363 be joined as associated cases and programmed and heard together. Anyone have any difficulty with that?

AD No

JR No.

DP In relation to the EOT – be given to the A in each matter to no later than 7 August 2023. Upon receipt of those we will look at a directions hearing in order to determine the pathway to be taken towards a resolution to the matters in issue. I flag that I would like some collaboration between the parties as to how to proceed. Ideally there be an agreed set of orders in light of the criminal proceedings, but 7 days prior to the TDH, I'd like submissions from each of the parties, I wont' set dates yet, once we've got the T-Docs, I'll foreshadow to find a way forward. Anything else?

JR No DP

AD No thank you.

DP Ok, look forward to seeing the T-Docs by 7 August. We'll adjourn.

Hearing concludes 1:47pm

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 19/07/2023 - MST Note

### File Note

**Category** MST Note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

1. Signed Joinder directions
2. Direction - EOT to file T-Docs (in all 3 matters)

| | |
|---|---|
| View | 2023 3361 Reid & Associated cases - Joinder order - signed.pdf |
| View | 2023 3361 Reid - EOT to file T-Docs - signed.pdf |

**Entered By**

**Officer** Natalie Ds47E(c)

**Date Entered** 19/07/2023

**Time Entered** 6:20PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

**ADMINISTRATIVE APPEALS TRIBUNAL** )
) No: 2023/3361
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION** )

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**ADMINISTRATIVE APPEALS TRIBUNAL** )
) No: 2023/3363
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION** )

Re: Simon Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**ADMINISTRATIVE APPEALS TRIBUNAL** )
) No: 2023/4494
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION** )

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

## DIRECTIONS FOR JOINDER OF MATTERS

**TRIBUNAL:** Deputy President Mischin

**DATE:** 19 July 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. Application 2023/3364 of Forward Focused Group Pty Ltd, having now been withdrawn, is to be disassociated from application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid.

2. Application number 2023/4494 of Forward Focused Group Pty Ltd and application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid are to be joined as

associated cases and programmed and heard together, and the evidence in any one application will, subject to relevance, be taken as evidence in the other applications.




.....
Deputy President

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | No: 2023/3361 |
| | ) | |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**
**ALLOWING FURTHER PERIOD FOR LODGEMENT OF DOCUMENTS**
**Section 37(1) *Administrative Appeals Tribunal Act 1975* (Cth)**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 19 July 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

Pursuant to section 37(1) of the *Administrative Appeals Tribunal Act 1975* (Cth) (the Act), the Respondent be allowed a further period until 7 August 2023 to lodge with the Tribunal the documents referred to in section 37(1) of the Act.

Administrative Appeals Tribunal

**Deputy President**

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 07/08/2023 - Phone Note

### File Note

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

INCOMING CALL. ENQUIRY ABOUT DOCUMENT LODGEMENT.

Cathy from AGS called. She wishes to file some documents for the three files. She asked if they needed to be uploaded for each file individually or whether she could upload once and state it is for all three files.

I advised that I was happy for her up upload once and I would put the documents on all files as necessary.

**Entered By**

| | |
|---|---|
| **Officer** | Jessica P[redacted] |
| **Date Entered** | 07/08/2023 |
| **Time Entered** | 3:50PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 08/08/2023 - Internal note

### File Note

| | |
|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

| | |
|---|---|
| **Listing Details** | |
| **Note** | Online submission M8JNF3 received on 8/08/2023 5:21:59 PM forwarded to Perth Registry. |

**Entered By**

| | |
|---|---|
| **Officer** | Jessica P[redacted] |
| **Date Entered** | 08/08/2023 |
| **Time Entered** | 5:48PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/08/2023 - Internal note - sent by email

### File Note

**Category** Internal note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** INTERLOCUTORY APPLICATION. APPLICATION FOR CONFIDENTIALITY ORDER

Dear Nat

The Respondent has filed a interlocutory application for a confidentiality order.

The Applicants have opposed the request.

Thanks and regards
Fiona

| | |
|---|---|
| View | 2023.3361 Confidentiality Order Request - Reid - D3WDJV - 20230808.pdf |
| View | 2023.3361 Letter to the Tribunal - Reid - D3WDJV - 20230808.pdf |
| View | Disclosable Index to confidentiality application(48829815.1).pdf |
| View | 23_08_23 - Ltr to AAT and Respondent regarding s 35.pdf |

**Entered By**

**Officer** Fiona C[s47E(c)]

**Date Entered** 24/08/2023

**Time Entered** 4:10PM

**Email File Note**

Perth Registry (perth.registry@aat.gov.au)

**Sent By** Fiona C[s47E(c)]

**Date Sent** 24/08/2023

**Time Sent** 4:36PM

**ADMINISTRATIVE APPEALS TRIBUNAL**
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION**
**PERTH REGISTRY** **2023/3361; 2023/3363; 2023/4494**

**VIDA REID**
**SIMON REID**
**FORWARD FOCUSSED GROUP**
Applicants

**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**
Respondent

**REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975**

**Orders sought:**

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal (the Tribunal) directs in the above proceedings:

1. because the T-documents … and … are subject to ongoing criminal proceedings and/or legal professional privilege, the documents are not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of these T-documents to the applicant or the public at large is prohibited;

2. because the **redacted text** in section … of T-document … (on pages … and … of the T-Docs Bundle is subject to legal professional privilege, the production of the contents of the redacted text to the applicant or the public at large is prohibited; and

3. because the T- document bundles are the subject to ongoing criminal proceedings, the disclosure of these documents to the public at large is prohibited (parties to have liberty to apply to amend this order); and

4. because of their likelihood to prejudice criminal proceedings and/or that legal professional privilege applies there be no publication or disclosure in the Tribunal's decision that reveals the contents of the T-documents … and ….nor the redacted text in section …..of T-document….(on pages…..and….of the T- Docs bundle) nor any of the T-document bundles that remain subject to order 2 above.

Date: 8 August 2023

Andrew Dillon
a/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

Contact: Karlie Dickinson

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

Our ref. 23004627

8 August 2023

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace
PERTH WA 6000
By email only: perth.registry@aat.gov.au

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567
PERTH WA 6000

By email only: info@tomandcolegal.com.au

Dear Registrar and Mr Monks

**AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)**

Please find enclosed Tribunal documents, as directed by order of Deputy President Mischin on 19 July 2023.

At the outset, please note that the respondent has prepared the Tribunal documents in accordance with the direction that "the evidence in any one application, subject to relevance, be taken as evidence in the other applications".

In practical terms this means that the first applicant's Tribunal document bundle contains the documents the respondent submits are relevant to the first applicant, in addition to documents that the respondent considers relevant to the first applicant and one or both of the other applicants. The second and third applicants' Tribunal documents contain documents relevant to that applicant alone.

**Section 35 application and proposed orders/ Request for direction limiting public access**

Please find enclosed a proposed order that the respondent seeks from the Tribunal in relation to, separately provided, documents.

By way of context, the first applicant is currently the subject of a criminal prosecution which is next listed on **3 November 2023**. In these circumstances, the respondent

has provided the Tribunal documents in a form that, it is submitted, is appropriate for the applicants and the Tribunal to view but not the public at this stage. For example, the respondent has included prosecution witness statements, noting that this information has been provided previously to the first applicant. However, given that these witnesses have not given evidence in the criminal proceedings or been reported to be associated with those proceedings, the respondent is not of the view that these statements should be available to the public. It is appreciated that this position is likely to change as the criminal proceedings progress and that as a result, any direction proceeded by the Tribunal in this regard will need to be reviewed in time.

In light of these criminal proceedings, the respondent is seeking specific orders in relation to a small number of documents as set out in the section 35 application. More generally, however, the respondent is seeking an order from the Tribunal that the Tribunal documents, in their entirety, are not to be made available to the public at this stage.

In the event that the Tribunal is not minded to make an order prohibiting public disclose of the Tribunal documents, we would welcome the opportunity to provide an amended set of Tribunal documents clearly marking information that we would submit would be appropriate for viewing by the public at large.

**Proposed stay**

Finally, DP Mischin suggested, at the earlier directions hearing, that the parties consider and discuss the possibility of these applications being stayed pending the outcome of the criminal proceedings. By way of update and despite invitations to do so, we have not had a response from the applicants' representatives as to whether or not they wish to apply to have these proceedings stayed pending the outcome of those criminal charges.

We would welcome a further discussion about the practicalities of progressing with these applications given the potential to prejudice the criminal proceedings (and the first applicant's rights) in the event that this matter is listed for a further directions hearing.

Please contact us if you would like to discuss.

Yours sincerely

Karlie L Dickinson

**Karlie Dickinson**
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

**ADMINISTRATIVE APPEALS TRIBUNAL**
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION**
**PERTH REGISTRY** **2023/3361 | 2023/3363 | 2023/4494**

**VIDA REID**

**SIMON REID**

**FORWARD FOCUSED GROUP PTY LTD**
Applicant

**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**
Respondent

**INDEX – CONFIDENTIAL AND REDACTED TRIBUNAL DOCUMENTS**

| Document No | Date | Document Description | T Doc Page |
|---|---|---|---|
| | | **Seeking confidentiality over the entirety of the following documents – they have not been disclosed to the applicants in the T Document bundles** | |
| 1. | 18/8/2022 | | N/A |
| 2. | 20/2/2023 | | N/A |
| 3. | 13/3/2023 | | N/A |
| 4. | 18/8/2022 | | N/A |
| 5. | 18/8/2022 | | N/A |
| 6. | 18/8/2022 | | N/A |
| 6.1 | 16/8/2022 | | N/A |
| 7. | 15/11/2022 | | N/A |
| 8. | undated | | N/A |
| 9. | 13/10/2022 | | N/A |
| | | **Documents containing proposed redactions. They have been provided with the proposed redactions to the applicants as referenced by their 'T' number** | |
| 10. | undated | T05. PDMS (EC22-002000) - Attachment 01A - Evidence Matrix | Repeat of doc 13 below |
| 11. | 24/6/2022 | T24. PDMS (EC22-002000) - Attachment 43 - Email from to Rejaul Alam dated 24 June 2022 | Repeat of doc 27 below |

| Document No | Date | Document Description | T Doc Page |
|---|---|---|---|
| 12. | 19/10/2022 | T09. Briefing Note (EC22-002000) relating to notice of intention to make banning order (listing schedule of attachments) | 160 - 163 |
| 13. | undated | T09.01 Attachment 01A - Evidence Matrix | 165 |
| 14. | undated | T09.03 Attachment 01C - Evidence Matrix | 170 - 174 |
| 15. | undated | T09.04 PDMS (EC22-002000) - Attachment 01D - NDIS Commission Investigation's Considerations | 178-182 |
| 16. | undated | T09.09 Attachment 06 - Key Issues Potential Breaches re FFG Vida Reid | 211-216 |
| 17. | undated | T09.10 Attachment 06A - Consideration of Evidence Information | 221-224 |
| 18. | undated | T09.11 Attachment 07 - Statement | 225 -238 |
| 19. | undated | T09.14 Attachment 09A – Information (Part 1) | 245-251 |
| 20. | undated | T09.15 - Attachment 09B - Information (Part 2) | 294 - 323 |
| 21. | undated | T09.16 Attachment 09C – Information (Part 3) | 324-325 |
| 22. | undated | T09.17 Attachment 09D - Information (Part 4) | 374, 380-381 |
| 23. | undated | T09.18 Attachment 09E - Information (Part 5) | 420 |
| 24. | 19/7/2022 | T09.20 Attachment 10 - Email | 424-432 |
| 25. | 15/7/2022 | T09.21 Attachment 12 - Complaint | 433-441 |
| 26. | 12/8/2022 | T09.22 Attachment 13 - Complaint | 442-453 |
| 27. | undated | T09.23 Attachment 14 – Summary of complaints made to NDIS Commission | 454-455 |
| 28. | 24/6/2022 | T09.51 Attachment 43 - Email | 497 |
| 29. | 3/5/2022 | T09.56 Attachment 48 - Email | 508 |
| 30. | 9/6/2022 | T09.58 Attachment 49 - Email | 509 |
| 31. | 31/3/2022 | T09.60 Attachment 53 - Email | 513-515 |
| 32. | undated | T44 PDMS (EC22-002103) Attachment M NDIS Commission Evidence Summary - Forward Focus Group | 1024-1029 |

Our ref: REIS6722
Your ref:

23 August 2023

**By Email Only**: perth.registry@aat.gov.au and karlie.dickinson@ags.gov.au

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace
PERTH WA 6000

Karlie Dickinson
Australian Government Solicitors

Dear Registrar

**Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361)**

**Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363)**

**Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)**

We refer to the above matters, the Administrative Appeals Tribunal (**Tribunal**) letter dated 10 August 2023, and correspondence from the Australian Government Solicitor (**AGS**) dated 8 August 2023.

**Section 35 application and proposed orders/ Request for direction limiting public access.**

We are instructed to oppose the section 35 Orders sought by the AGS.

It is our view that the proposed Orders sought are broad and inherently prejudicial to our clients, in particular, the adverse implication to Mr Simon Reid (**Mr Reid**) and Forward Focused Group Pty Ltd (**FFG**), who are not the subject of the criminal proceedings.

The Respondent's reasons for the confidentiality order are insufficiently cogent not to provide documents to the Tribunal and our clients. We are of the view that it is only proper for the Tribunal to be afforded the Tribunal documents in their entirety to assist in the efficient determination of the matter.

**Proposed stay**

The AGS recollection from the 19 July 2023 interlocutory hearing regarding the applications being stayed is incorrect. For the avoidance of doubt, the issue that was determined at the hearing was in relation to the Respondent's lodging the Tribunals documents.

We informed Ms Dickinson by Email on 7 August 2023 that we would advise our client and seek instructions with respect to the stay.

Based on the correspondence from Ms Dickinson on 7 August 2023, it appears the AGS's motivation for the stay was to not provide the Tribunal and our clients with the section 37 documents. When this matter was raised by email to the Tribunal on 7 August 2023 by our Tom Monks, the AGS subsequently lodged the Tribunal documents that were neither helpful nor sufficient for the Tribunal to conduct the matter.

Notwithstanding the above, it may be necessary to separate the first Applicant in order for Mr Reid and FFG to proceed.

Our clients reserve their rights to determine having the proceeding stayed after the outcome of the section 35 proceeding.

Please do not hesitate to contact our office if you have any queries.

Kind regards

*Tom & Co Legal*

Tom & Co Legal

Cc AAT
Ms Karlie Dickinson

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 12/09/2023 - Phone Note

**File Note**

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

Respondents rep called this morning to enquire about the submissions sent this morning (12/09/2023) and the adjournment request for the hearing listed today at 10am.

TO confirmed that the Tribunal had received the submissions and advised that the hearing is proceeding but may be adjourned as DP would like to talk to the parties first.

**Entered By**

| | |
|---|---|
| **Officer** | Sharni N[redacted] |
| **Date Entered** | 12/09/2023 |
| **Time Entered** | 11:52AM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 12/09/2023 - MST Note

### File Note

| | |
|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | File note - interlocutory hearing |

View 230912 - Interlocutory Hearing file note.docx

**Entered By**

| | |
|---|---|
| **Officer** | Natalie D[redacted] |
| **Date Entered** | 12/09/2023 |
| **Time Entered** | 2:04PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

| FILE NOTE | | |
|---|---|---|
| **DATE** | 12 September 2023 | |
| **FILE NO.** | 2023/3361, 2023 3363, 2023 4494 | |
| **PARTIES** | Vida Reid, Simon Reid, FFG & Commissioner, NDIS Quality and Safeguards Commission | |
| **MEMBER** | Deputy President Mischin | |
| **HEARING** | Interlocutory Hearing at 10:00am | |
| **ATTENDEES** | **Applicant:**<br>Vida Reid & Simon Reid & FFG<br><br>**Representative:**<br>Mr Tom Monks<br>0402 961 503<br><br>Mr Jason Raftos<br>08 6255 5737 | **Respondent Representative:**<br>Mr Oliver Young - AGS<br>s47F<br><br>**NDIS Commission:**<br>Hilda McGrillen<br>s47F<br><br>Pascal Moussa<br>s47F |

**Hearing commences 10:06am**

DP Takes appearances. Purpose of the hearing was to turmoil over the status of certain documents that were to be provided to the Applicant's pursuant to s37 (T-Docs), issues of Legal Professional Privilege (LPP) and confidentiality. Focused on the criminal proceedings currently on the way and other matters of public interest immunity. I understand there there is a problem with submissions filed late, I believe from advice that some discussion has now taken place between the parties and a position has been settled regarding the progress of today's matter and its adjournment. You application Mr Young, what's happening?

OY you're correct, there has been some discussions, R filed submissions this morning with the intention to assist the T in relation to the application that has been brought, there has been discussion with A solicitors and understandably they want time to consider those submissions. What has been agreed is to allow the A two weeks to put on written submissions in response to R submissions, and an additional week for right of reply for the R. What the parties are seeking is that the hearing be adjourned to allow the Applicant to have 2 weeks to file written submission, R a further week and if no agreement reached, or if there's a compromised position reached, to reconvene for a further hearing.

DP Mr Raftos?

JR That's correct but I'll add that we intend to have detailed conferral with the R's lawyers about those orders. Hopefully there can be an agreed position, if not, it may be what's in dispute is reduced. Certainly it's not just for written submissions It's also for the parties to confer in more detail about matters.

DP Ok, I welcome that, anything that can be resolved by agreement is preferable and would save time down the track. Just to clarify, we 're dealing with the R submissions in relation to confidentiality and disclosure and publication, submissions filed on the 12 September, correct?

OY Yes

JR Yes, that's my understanding.

DP Ok there will be discussions about that and you want until 26 September for filing (A), following which by 3 October for the R reply if necessary.

JR Yes

DP In that case, we will adjourn today but otherwise directing that.. and please consider whether the wording meets the care, but the A file with the T and give to the R submissions regarding the disclosure and publication of docs obliged to be provided by the R pursuant to s37 of the Act by no later than 26 September 2023, and further direction that the R file any reply with the T and give to the A any submissions in reply by no later than 3 October 2023. That meet the situation?

OY Yes, it does from our end, thank you.

JR Yes

DP There are a couple of other issues that were thrown up by the submission. A question of whether orders need to be made temporarily to preserve the position. One is the question of publication of the T-Docs generally, apart from the ones that the R seeks to have quarantined because they're confidential, but the T-

Docs generally, are not published pending the outcome of the criminal proceedings. Is that right? I'm looking at the s35 application, a document signed by Andrew Dillon (AGS) dated 8 August 2023, this was the draft directions, but I thought it was thrown up by your submissions the question of publication generally.

OY My understanding is that it's just the quarantined documents. But let me clarify with my instructors.

DP If you would please. If its' in relation to the quarantined documents or the general ones being published, pending the outcome of criminal proceedings. This raises the question whether pending that hearing and a decision on the matter, there ought to be interim order made to preserve the position .. perhaps take instructions and perhaps Mr Raftos, you can take instructions also, if there is something that is compromised in the meanwhile .. the evidence should stay private to the proceedings so not to compromise the criminal proceedings. So we will adjourn for a few minutes so you can take instructions.

OY Could we adjourn for 5 minutes?

DP Yes, we'll do that. We'll adjourn until 10.30am.

OY Thank you DP.

**Hearing adjourned temporarily at 10.18am**

**Hearing reconvenes 10.32am**

DP Ok, Mr young, Where are we?

OY Thanks DP, I'm instructed that the Commission would seek an interim order in line with order 3 of proposed orders dated 8 August 2023. The reason is that there are witness statements in the T-Docs in relation to the ongoing criminal proceedings, and the names of those witnesses haven't been disclosed to the public at large. The other reason is that also it contains in the T-Docs complaints from complainants and there is a concern about their personal information being disclosed to the public at large. That's the reason the order is being pressed by the Commission

DP Mr Raftos?

JR No objection to those interim orders.

DP Ok, and the disclosure.. limiting disclosure of any documents to the A, which was part of the draft orders 1 & 2, that is not presenting a problem? Mr Young?

OY They do still present a problem and I understand having spoken with my friend this morning, that what's the A's submission will be in relation to.

DP Ok, so the R has an issue with publication of s37 T-Docs generally, to the public or to anyone outside of the parties dealing with this matter? Correct?

OY Yes

DP and in particular, pending the question of confidentiality and disclosure has an issue with the provision of only those docs in the bundle, headed index confidential T-Docs, correct?

OY Yes

DP JR, do you have any problem with an order that limits the publication of T-Docs generally? Outside the parties and representatives?

JR No, opposition to that. The issues we'd like to confer with the R next week, is limiting the docs being provided with the A's legal representatives. No objection to the order.

DP Alright, what I propose then is, a direction to the following effect: that pursuant to s37(1AE) of the Act, and until further order, by reason of current criminal proceedings and/or LPP, the R is not required to give to the A's a copy of the documents filed with the T pursuant to s37(1) of the Act, contained in the bundle provided to the T and marked *Index confidential T documents*. The other T docs are already available and can be made available, but we've quarantined the ones that are in issue. Further to direct that:
Pursuant to s35 of the AAT Act, the documents filed with the T pursuant to s37(1) of the AAT Act, must not be published to other than the parties, their representatives, members of the T and staff of the T and any person performing services for the T acting in the course of their duties. Do you want to give some thought to that to see if that covers the situation.

JR If I may, the issue for us is that we're taking issue with docs not being disclosed in terms of proposed order 1, that is something we were seeking to confer with the R next week and if agreement to be made then to make written submission. The order deals with that issue?

DP Yes I'm hoping so, pending you coming back to me, until you've conferred and the like. What I'm proposing to do and give some thought to the framing of it, is that you give the submissions, there's a reply, there's discussions in the meanwhile, but pending further order, the ones that the R does not wish to disclose to you

are not to be disclosed, that's pending further order and otherwise more generally, the T-docs pending further order are not to be published.

JR Yes, I follow you. There is no objection.

DP If I make these directions and you realise there's' something needs tweaking, come back to me. I'm hoping to do is to preserve the current position until the parties can work out a compromise or that we thrash out the merits of what the R contends. To protect more generally, the publication of the T-docs generally which may be prejudicial to protect the prosecution or the Applicants if they were to be published beyond those who need to see them.

JR No objection from the A.

OY Happy with that. Thank you.

DP This is all subject to further orders and directions as necessary so we can be flexible about this. I'll repeat the orders – Directions - that A file with the T and give to the R submissions regarding disclosure and publication required to be provided by the R pursuant to s37 of the AAT Act, by no later than 26 Sep 2023, the R file and give to the A any submissions in reply by no later than 3 October. Order - Pursuant to s37(1)(AE) and until further order, by reason of current criminal proceedings or LPP, the R is not required to give to the A a copy of the docs filed with the T pursuant to s37(1) of the AAT Act in the bundle marked *Index Confidential T-documents*. Pursuant to s35 and until further order, the documents required to be filed and provided to the A pursuant to s37 of the AAT Act, must not be published to anyone other than the A, their representatives, members of the T, staff of the T and anyone

Performing services for the T acting in the course of their duties. If everyone is content with that, we'll adjourn the proceedings but may I invite also the parties to consider over the next few weeks whether the proceedings before the T either before or after the question of disclosure is sorted out ought not to be stayed pending the resolution of the criminal proceedings. So, I'll leave that question to you to turmoil over in the meanwhile. Anything further?

OY Nothing from the R

JR Nothing from the A.

**Hearing concludes 10:47**

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 12/09/2023 - MST Note

**File Note**

| | |
|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Signed Order - non-publication and non-disclosure; and<br>Signed Direction dated 12 September 2023 |

| | |
|---|---|
| View | 2023 3361 Reid - Direction dated 12 September 2023.pdf |
| View | 2023 3361 Reid - Order - non-disclosure and non-publication - signed.pdf |

**Entered By**

| | |
|---|---|
| **Officer** | Natalie D s47E(c) |
| **Date Entered** | 12/09/2023 |
| **Time Entered** | 3:59PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 12 September 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 26 September 2023**, the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth);

2. **By no later than 3 October**, the Respondent file with the Tribunal and give to the Applicants any submissions in reply.

Administrative Appeals Tribunal

.....
**Deputy President**

Administrative Appeals Tribunal

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**ORDER**
**Sections 35 & 37 *Administrative Appeals Tribunal Act 1975* (Cth)**
**Non-Publication and Non-Disclosure**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 12 September 2023

**PLACE:** Perth

The Tribunal ORDERS that:

1. Pursuant to section 35 of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act) and until further order, the documents required to be provided by the Respondent under section 37(1) of the AAT Act must not be published to other than the parties, their representatives, and members of the Tribunal and staff of the Tribunal, and any person performing services for the Tribunal acting in the course of their duties.

2. Pursuant to section 37(1AE) of the AAT Act and until further order, by reason of current criminal proceedings and/or legal professional privilege, the Respondent is not required to give to the Applicants a copy of the documents filed with the Tribunal pursuant to section 37(1) of the AAT Act in the bundle marked 'Index – Confidential Tribunal Documents';

Administrative Appeals Tribunal
**Deputy President**
Administrative Appeals Tribunal

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 27/09/2023 - Internal note

### File Note

**Category** Internal note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Incoming call from Respondent Karlie Dickinson. Transferred from FoH. ID check confirmed.
Karlie was inquirying whether the Applicant had filed any submissions as per Direction (due 26/09/23). TO advised no submissions have been received and TO would advise Associate of her call for non compliance.

**Entered By**

**Officer** Natalie M[redacted]

**Date Entered** 27/09/2023

**Time Entered** 1:47PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 27/09/2023 - Phone Note

**File Note**

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Tom Monks(applicant rep) called ID check completed<br>Discussed the email sent to him regarding non-compliance to the direction 1<br>Applicant rep to send in a request for an EOT before COB today GP |

**Entered By**

| | |
|---|---|
| **Officer** | Gary P s47E(c) |
| **Date Entered** | 27/09/2023 |
| **Time Entered** | 3:10PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 29/09/2023 - MST Note

### File Note

**Category** MST Note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed directions

View 2023 3361 Reid - Directions to vary directions dated 12 September 2023 - signed.pdf

**Entered By**

**Officer** Natalie D s47E(c)

**Date Entered** 29/09/2023

**Time Entered** 11:51AM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

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|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 28 September 2023

**PLACE:** Perth

The Tribunal DIRECTS that the Directions made on 12 September 2023 be varied as follows:

1. In direction 1, by changing the date by which the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth) from no later than 26 September 2023 to **no later than 17 October 2023**.

2. In direction 2, by changing the date by which the Respondent file with the Tribunal and give to the Applicants any submissions in reply from no later than 3 October 2023 to **no later than 24 October 2023**.

Administrative Appeals Tribunal AUSTRALIA

.....
**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975.* If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 17/10/2023 - MST Note

**File Note**

| | |
|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Signed directions dated 17.10.23 |

View 2023 3361 Reid - Direction dated 17.10.23 - signed.pdf

**Entered By**

| | |
|---|---|
| **Officer** | Natalie D s47E(c) |
| **Date Entered** | 17/10/2023 |
| **Time Entered** | 5:23PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 17 October 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 31 October 2023**, the Respondent is to file with the Tribunal and serve on the Applicants written submissions in support of its application for a Stay of Proceedings.

2. **By no later than 14 November 2023**, the Applicants are to file with the Tribunal and serve on the Respondent written submissions in reply to the Respondent's application for a Stay of Proceedings.

3. The matter be listed for an interlocutory hearing as soon as practicable after 14 November 2023.

Administrative Appeals Tribunal

.....
**Deputy President**

Administrative Appeals Tribunal

## NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 25/10/2023 - MST Note

### File Note

**Category** MST Note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed directions

View 2023 3361 Reid - Directions dated 24 .10.23 - signed.pdf

**Entered By**

**Officer** Natalie D s47E(c)

**Date Entered** 25/10/2023

**Time Entered** 6:06PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 24 October 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. The Directions dated 28 September 2023 and 17 October 2023 are hereby revoked.

2. **By no later than 2 November 2023**, the Respondent is to file with the Tribunal and serve on the Applicant:

   (a) written submissions, and any evidence upon which she intends to rely, in support of her application for a Stay of Proceedings dated 11 October 2023; and

   (b) any further submissions and evidence in support of her 'Request for Confidentiality Orders Under Section 35 of the *Administrative Appeals Tribunal Act 1975*' application filed on 8 August 2023.

(c) **By no later than 16 November 2023**, the Applicant is to file with the Tribunal and serve on the Respondent any submissions, and any evidence upon which they intend to rely, in respect of the Respondent's applications for a Stay of Proceedings and confidentiality orders.

(d) **By no later than 30 November 2023**, the Respondent is to file any submissions in reply or advise that she does not wish to file a reply.

(e) An interlocutory hearing be listed to hear both applications as soon as practicable after 29 November 2023, or as soon as practicable after the Respondent has advised that she does not wish to file a reply.




**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 18/01/2024 - Instructions to Issue Direction/Order/Decision

### File Note

**Category** Instructions to Issue Direction/Order/Decision

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed Directions 17 January 2024
DP Mischin

| | |
|---|---|
| View | 18012024112331-0001.pdf |
| View | 2023_3361_cover email_180124.pdf |

**Entered By**

**Officer** Willem W[redacted]

**Date Entered** 18/01/2024

**Time Entered** 2:48PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 17 January 2024

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **Application 2023/3361 of Vida Reid** be adjourned pending the termination or resolution of criminal proceedings against her relating to matters the subject of the decision under review.

2. **Application 2023/4494 of Forward Focussed Group Pty Ltd** be adjourned pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

3. **By no later than 7 February 2024,** the Applicant Simon Reid is to file with the Tribunal and serve on the Respondent any further submissions and evidence upon which he intends to rely in response to the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

4. **By no later than 28 February 2024,** the Respondent is to file with the Tribunal and serve on the Applicant Simon Reid any further submissions and evidence upon which she intends to rely in reply in support of her application for an adjournment or stay of proceedings in Applicant Simon Reid's Application for review.

5. The interlocutory hearing be relisted as soon as practicable after 28 February 2024, or as soon as practicable after the Respondent has advised that she does not wish to file submissions and evidence in reply.




**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975.* If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

**Willem W**[redacted]

**From:** The Hon. Michael Mischin
**Sent:** Thursday, 18 January 2024 10:28 AM
**To:** Perth Registry; Willem W[redacted]
**Subject:** RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction [SEC=OFFICIAL, ACCESS=Personal-Privacy]
**Attachments:** 2024.01.17 2023 3361 Reid - Directions re interlocutory applications.docx

**Categories:** Bill

**OFFICIAL**
**Personal privacy**

Thanks Bill

Please consider the amended version attached and let me know if you discern anything that may not make sense or may need correction. Happy to answer any questions.

If it is okay, please let me know and consider it to have been signed.

Signed copy will follow.

Once it is sealed, please provide me with a copy of the sealed version for my paper records.

Cheers

Michael

**The Hon. Michael Mischin**
Deputy President, Division Head (NDIS Division)

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**
Perth Registry
T: [redacted]
E: [redacted] aat.gov.au

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**From:** Perth Registry <perth.registry@aat.gov.au>
**Sent:** Wednesday, 17 January 2024 1:09 PM
**To:** The Hon. Michael Mischin <[redacted] aat.gov.au>
**Subject:** 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

Dear Deputy President,

Please find attached draft Direction.

Yours sincerely,

**Willem W**
Associate

**Administrative Appeals Tribunal**
**Perth regstry**

T: 08 6222 7200 F: 08 6222 7299
E: perth.registry@aat.gov.au

www.aat.gov.au

Please refer to the AAT website for information about temporary changes in place to respond to the impact of COVID-19 on services, including special measures practice directions: http://www.aat.gov.au/impact-of-coronavirus-covid-19-on-our-services.

The AAT will not usually send a hard copy of any document sent to you by email, unless you request that we do so.

*The Administrative Appeals Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.*

**IMPORTANT:**

This mailbox is monitored intermittently. To avoid processing delays, please lodge applications and submit documents through the Administrative Appeals Tribunal's online services portal. For more information about how to use the online portal, visit our website or contact us

This message and any attachments may contain confidential or legally privileged information. If the message was sent to you by mistake, please delete all copies and notify the AAT by return email. Any review, retransmission, dissemination or other use of this information by persons or entities other than the intended recipient is prohibited and may attract criminal penalties.

</p<>

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 13/02/2024 - Instructions to Issue Direction/Order/Decision

### File Note

**Category** Instructions to Issue Direction/Order/Decision

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed aried direction dated 9 February 2024 by DP Mischin

View 13022024090351-0001.pdf

**Entered By**

**Officer** Christie C[redacted]

**Date Entered** 13/02/2024

**Time Entered** 12:21PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | |
| | ) | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 9 February 2024

**PLACE:** Perth

The Tribunal DIRECTS that the Directions made on 17 January 2024 be varied as follows:

1. In Direction 3, by changing the date by which the Applicant Simon Reid is to file with the Tribunal and serve on the Respondent any further submissions and evidence upon which he intends to rely in response to the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid, from on or before 7 February to **12 February 2024.**

Deputy President

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 13/02/2024 - Registry Note

### File Note

**Category** Registry Note

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Hi Christie,

Please see attached for filing is the Applicant's Supplementary Submissions in Opposition to the Stay of Proceedings.

Kind regards,

**Entered By**

**Officer** Hayley B[redacted]

**Date Entered** 13/02/2024

**Time Entered** 2:36PM

**Email File Note**

Perth Registry (perth.registry@aat.gov.au)

**Sent By**

**Date Sent**

**Time Sent**

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 28/05/2024 - Instructions to Issue Direction/Order/Decision

### File Note

**Category** Instructions to Issue Direction/Order/Decision

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed Direction
15 May 2024
DP Mischin

View 21052024090415-0001.pdf

**Entered By**

**Officer** Willem W[redacted]

**Date Entered** 28/05/2024

**Time Entered** 6:00PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | No: 2023/3361 |
| | ) | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focus Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 15 May 2024

**PLACE:** Perth

The Tribunal DIRECTS that:

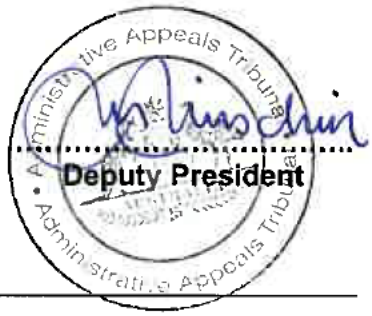
1. **By no later than 5 June 2024** the Respondent file with the Tribunal and serve on the Respondent an updated tender bundle for each of the Applicants.

2. **On or before 26 June 2024** the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. **On or before 17 July 2024** the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

4. **On or before 31 July 2024** the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions.

5. **On or before 7 August 2024** the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive.




**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 28/05/2024 - Instructions to Issue Direction/Order/Decision

### File Note

| | |
|---|---|
| **Category** | Instructions to Issue Direction/Order/Decision |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed Direction
15 May 2024
DP Mischin

View 21052024090259-0001.pdf

**Entered By**

| | |
|---|---|
| **Officer** | Willem W[redacted] |
| **Date Entered** | 28/05/2024 |
| **Time Entered** | 6:15PM |

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | No: 2023/3361 |
| | ) | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focus Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 15 May 2024

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 5 June 2024** the Respondent file with the Tribunal and serve on each of the Applicants an updated tender bundle.

2. **On or before 26 June 2024** the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. **On or before 17 July 2024** the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

4. **On or before 31 July 2024** the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions.

5. **On or before 7 August 2024** the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive.




**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 14/06/2024 - Instructions to Issue Direction/Order/Decision

### File Note

| | |
|---|---|
| **Category** | Instructions to Issue Direction/Order/Decision |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Signed direction DP Mischin dated 15 May 2024

View 15052024142403-0001.pdf

**Entered By**

| | |
|---|---|
| **Officer** | Christie C[redacted] |
| **Date Entered** | 14/06/2024 |
| **Time Entered** | 6:49PM |

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | No: 2023/3361 |
| | ) | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focus Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 15 May 2024

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 5 June 2024** the Respondent file with the Tribunal and serve on each of the Applicants an updated tender bundle.

2. **On or before 26 June 2024** the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. **On or before 17 July 2024** the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

4. **On or before 31 July 2024** the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions.

5. **On or before 7 August 2024** the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive.




**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/06/2024 - Instructions to Issue Direction/Order/Decision

### File Note

**Category** Instructions to Issue Direction/Order/Decision

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** signed direction

View 2023 3361;3363;4494 Reid Reid and Forward Focused signed Directions.pdf

**Entered By**

**Officer** Rachel S[redacted]

**Date Entered** 24/06/2024

**Time Entered** 1:32PM

**Email File Note**

**Sent By**

**Date Sent**

**Time Sent**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | ) | No: 2023/3361 |
| | ) | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | ) | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 17 June 2024

**PLACE:** Perth

The Tribunal DIRECTS that the Directions made on 15 May 2024 be varied as follows:

1. In direction 2 by changing the date that the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing from 'On or before 26 June 2024' to '**On or before 10 July 2024**'.

2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to '**On or before 31 July 2024**'.

3. In direction 4 by changing the date that the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions, from 'On or before 31 July 2024 to '**On or before 7 August 2024**'.

4. In direction 5 by changing the date that the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive from 'On or before 7 August 2024' to '**On or before 14 August 2024**'.




**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/07/2024 - Phone Note

### File Note

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Called Ms Kurewa to follow up on Respondent's availability for TDH re email sent 17 July. She hadn't received email. as recently took carriage of matter. RS fwdd on. |

**Entered By**

| | |
|---|---|
| **Officer** | Rachel S[redacted] |
| **Date Entered** | 24/07/2024 |
| **Time Entered** | 4:45PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 06/08/2024 - Phone Note

### File Note

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Called Respondent to seek update on non compliance with direction 2 Applicants sfic and evidence - A rep said seeking stay app and will email Tribunal today |

**Entered By**

| | |
|---|---|
| **Officer** | Rachel S[redacted] |
| **Date Entered** | 06/08/2024 |
| **Time Entered** | 12:33PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 19/09/2024 - Listing/Constitution Instructions - sent by email

### File Note

**Category** Listing/Constitution Instructions

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

NDIS CONSTITUTION

Case: Reid V & Commissioner, NDIS Quality and Safeguards Commission (2023/3361) and associated cases: Reid S & Commissioner, NDIS Quality and Safeguards Commission (2023/3363) and Fast Forward Group P/L & Commissioner NDIS Quality & Safeguards Commission (2023/4944)

Confirmation of constitution: Deputy President Kathryn McMillan
Approved by Deputy President Kruna Dordevic
- - - - - - - - - - - - -

Morning/Afternoon

This matter has been constituted to Deputy President Kathryn McMillan in Brisbane pursuant to s19D(1) of the Administrative Appeals Tribunal Act 1975.

Please transfer the file to Brisbane Registry and send the notification letter to the parties.

Please note that the information currently available contemplates that the next case event will be a Directions Hearing to address a stay application made by the Applicant. Further details can be found in the constitution memo attached.

If there are any issues with this re-constitution, please email Rowena H s47E(c)

Many thanks,
Rowena H s47E(c)
NDISD Registrar (A/g)

View 2023 3361+3363+4494 Reid + Forward Focused Constitution Memo.docx

**Entered By**

**Officer** Rowena H s47E(c)

**Date Entered** 19/09/2024

**Time Entered** 1:40PM

**Email File Note**

Perth Registry (perth.registry@aat.gov.au)
Brisbane Registry (brisbane.GD@aat.gov.au)
MST Brisbane (MST.BrisbaneGD@aat.gov.au)

Kathryn McMillan (s47E(d) aat.gov.au)
Madeleine S s47E(c) (reviews@art.gov.au)

| | |
|---|---|
| **Sent By** | Rowena H s47E(c) |
| **Date Sent** | 19/09/2024 |
| **Time Sent** | 1:48PM |

Administrative Appeals Tribunal

# CONSTITUTION MEMO

**National Disability Insurance Scheme Division**

**To:** Deputy President Mischin **Date:** 6/09/2024

| **Case Number:**<br>2023/3361<br>2023/3363<br>2023/4494 | **Case Name:**<br>**Reid V & Commissioner NDIS Quality & Safeguards Comm**<br>**Reid S & Commissioner NDIS Quality & Safeguards Comm**<br>**Fast Forward Group P/L & Commissioner NDIS Quality & Safeguards Commission** | |
|---|---|---|
| | **Party** | **Representative/s** |
| **Applicant** | Vida Reid<br>Simon Reid<br>Forward Focused Group P/L<br>Adult ☐ Minor ☐ | Tom Monks, Tom & Co Lawyers, Perth |
| **Respondent** | NDIA | Karlie Dickinson , AGS |
| **Home Registry** | *Perth* | |
| **Date Application lodged with Tribunal** | 2023/3361 lodged 10/05/2023<br>2023/3363 lodged 10/05/2023<br>2023/4494 lodged 26/06/2023 | |
| **Matter Type** | *Registered service providers* | |
| **Relevant background information** | [*NOTE: condition/s, number of supports (if plan), etc*]<br>Applications relate to decisions of the NDIS Commission to revoke registration of Forward Focused; and issue banning orders against Ms Reid, Mr Reid and Forward Focused preventing them providing services to NDIS funded participants. In the relevant period, Ms Reid was a director of Forward Focussed but Mr Simon Reid was not. Applicants are located in WA. | |
| **Accessibility Requirements** | N/A | |
| **Interpreter Requirements** | N/A | |
| **Last Direction and due date for compliance** | Directions made by DP Mischin on 17/06/2024:<br>The Tribunal DIRECTS that the Directions made on 15 May 2024 be varied as follows:<br>1. In direction 2 by changing the date that the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing from 'On or before 26 June 2024' to 'On or before 10 July 2024'.<br><br>2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues | |

| | |
|---|---|
| | and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to 'On or before 31 July 2024'.<br><br>3. In direction 4 by changing the date that the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions, from 'On or before 31 July 2024 to 'On or before 7 August 2024'.<br><br>4. In direction 5 by changing the date that the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive from 'On or before 7 August 2024' to 'On or before 14 August 2024'. |
| **Proposed hearing duration** | |
| **Preferred hearing mode** | *MS Teams* |
| **Any other information relevant to constitution** | [*NOTE: conflicts of interest, novel issues, complaints received, recommendation of Member*]<br>Not previously constituted - DP Mischin has dealt with interlocutory issues relating to confidentiality and stay applications prior to making programming directions as matter is not appropriate for ADR.<br>Current directions not complied with. Applicant has applied for a stay and Respondent is seeking TDH but none listed to date.<br><br>Following liaison between DP Dordevic and SM Olding this matter is to be constitited to DP McMillan. |

*To be completed by CMAT post-constitution*

Prepared on: 19/09/2024

Decision: DP Kathryn McMillan

Date: 19/09/2024

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 27/09/2024 - Internal note - sent by email

### File Note

| | |
|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

Case: Reid V & Commissioner, NDIS Quality and Safeguards Commission (2023/3361) and associated cases: Reid S & Commissioner, NDIS Quality and Safeguards Commission (2023/3363) and Fast Forward Group P/L & Commissioner NDIS Quality & Safeguards Commission (2023/4944)

Hi Brisbane!

These files have been transferred across to you as requested via the File note of 19 September 2024. I've made the CO "Registry, Brisbane" for you to allocate and have sent transfer notices.

Thank you!

**Entered By**

| | |
|---|---|
| **Officer** | Clare Ms47E(c) |
| **Date Entered** | 27/09/2024 |
| **Time Entered** | 3:54PM |

**Email File Note**

Brisbane Registry (brisbane.GD@aat.gov.au)

| | |
|---|---|
| **Sent By** | Clare Ms47E(c) |
| **Date Sent** | 27/09/2024 |
| **Time Sent** | 4:05PM |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 02/10/2024 - Phone Note

### File Note

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Karlie DIckinson RR rang to check whether AAT has received a SOFIC from R. TO checked all three matters and advised that we had not. |

**Entered By**

| | |
|---|---|
| **Officer** | Emily M[redacted] |
| **Date Entered** | 02/10/2024 |
| **Time Entered** | 5:16PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 03/10/2024 - Instructions to Issue Direction/Order/Decision

### File Note

| | |
|---|---|
| **Category** | Instructions to Issue Direction/Order/Decision |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Approved by DP Lazanas

| | |
|---|---|
| View | Email approval.pdf |
| View | Directions signed 3 October 2024.doc |

**Entered By**

| | |
|---|---|
| **Officer** | Daniel K[s47E(c)] |
| **Date Entered** | 03/10/2024 |
| **Time Entered** | 4:30PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

Outlook

## FW: 2023/3361 Reid; FFG and CoT Directions [SEC=OFFICIAL]

**From** Gina Lazanas <s47E(d) aat.gov.au>
**Date** Thu 2024-10-03 15:46
**To** Daniel K s47E(c) <s47E(d) aat.gov.au>

1 attachments (94 KB)
Directions draft 3 October 2024.doc;

OFFICIAL

Thanks Daniel, Good to go.

**Gina Lazanas**
Deputy President

**Administrative Appeals Tribunal**
**Sydney**
T: s47E(d)
E: s47E(d) aat.gov.au

www.aat.gov.au

---

**From:** Daniel K s47E(c) <s47E(d) aat.gov.au>
**Sent:** Thursday, October 3, 2024 3:29 PM
**To:** Gina Lazanas <s47E(d) aat.gov.au>
**Subject:** 2023/3361 Reid; FFG and CoT Directions

Hi Gina,

Following this morning's CMTDH, please see draft directions.

I will list the matter as discussed on 25 November 2024 at 10:00AM (Perth time) as parties are in Perth. As DP McMillan is in Brisbane, this will be 12:00PM midday her time. I'll send out LN's with the directions.

Thanks,
Daniel

**Daniel K** s47E(c)

Associate

**Administrative Appeals Tribunal**

**General & Other Divisions**

Sydney Registry

T: s47E(d)

E: s47E(d) aat.gov.au

www.aat.gov.au

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | No: 2023/3361 |
| | **)** | 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President G Lazanas

**DATE:** 3 October 2024

**PLACE:** Perth

The Tribunal DIRECTS:

1. the Direction dated 17 June 2024 (in relation to all proceedings, namely, 2023/3361, 2023/3363 and 2023/4494) is vacated.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 October 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

3. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **14 November 2024**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

4. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **21 November 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

5. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report on **25 November 2024** at **10:00AM** (Perth time).




**……**
Deputy President G Lazanas

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 04/11/2024 - MST Note - sent by email

**File Note**

| | |
|---|---|
| **Category** | MST Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

Dear Ben,

Could you please create a new entry for the Applicant's new rep? The firm and case contact do not appear to be in TRACS:

Rep: Weeks & Co. Barristers and Solicitors
Suite C2, 1 The Esplanade
Mt Pleasant WA 6153

For service: PO Box 805, Canning Bridge
Applecross WA 6153

Case contact: Charles Dallimore, Senior Associate
Phone: (08) 6141 3178
Mobile: 0417 787 224
email: charles@weeksco.com.au

Kind Regards,
Maddy

**Entered By**

| | |
|---|---|
| **Officer** | Madeleine S[redacted] |
| **Date Entered** | 04/11/2024 |
| **Time Entered** | 6:20PM |

**Email File Note**

Brisbane Registry (brisbane.GD@aat.gov.au)

| | |
|---|---|
| **Sent By** | Madeleine S[redacted] |
| **Date Sent** | 04/11/2024 |
| **Time Sent** | 6:27PM |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 04/11/2024 - Internal note - sent by email

### File Note

| | |
|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note**

FILE REFERRAL TO ASSOCIATE (Madeleine)

Case: 2023/3361 Reid / Commissioner of the NDIS Quality and Safeguards Commission

Issue:
Response to MST Note of 4/11/2024.

Background:
I have added the new rep to case for the Applicant.

Action Required:
Please check if the other rep (Tom & Co Legal) is still required to be on the case.
Thank you

**Entered By**

| | |
|---|---|
| **Officer** | Ben A[redacted] |
| **Date Entered** | 04/11/2024 |
| **Time Entered** | 6:42PM |

**Email File Note**

MST Brisbane (MST.BrisbaneGD@aat.gov.au)

| | |
|---|---|
| **Sent By** | Ben A[redacted] |
| **Date Sent** | 04/11/2024 |
| **Time Sent** | 6:48PM |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 12/02/2025 - Phone Note

**File Note**

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | Applicant Mrs Vida Reid phoned Perth Registry 12 Feb 2025. Wanted to check tpime for the hearing tomorrow. Advised listing was at 10:00am by video. Mrs Reid said she had no received the SIP links. She will email Brisbane Registry to request details.<br>jac |

**Entered By**

| | |
|---|---|
| **Officer** | Jacobus D[redacted] |
| **Date Entered** | 12/02/2025 |
| **Time Entered** | 6:10PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 17/04/2025 - Phone Note

### File Note

| | |
|---|---|
| **Category** | Phone Note |
| **Contact** | Vida Reid |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

| | |
|---|---|
| **Note** | spoke to Applicant who called Bris Registry. She claims there has been no communication from the Tribunal for 2 months, and the last thing that happened was a hearing regarding a privacy breach, and the ART asked her for 2 weeks which she consented to. I advised I'm not familiar with her case and that her TO is on leave, reconfirmed her contact info and advised I will go look into this matter for her and send an update via email (as she is overseas currently) |

**Entered By**

| | |
|---|---|
| **Officer** | Minna C[redacted] |
| **Date Entered** | 17/04/2025 |
| **Time Entered** | 1:04PM |

**Email File Note**

| | |
|---|---|
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/05/2026 - Member instructions

**File Note**

**Category** Member instructions

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Also which document indicates she is now not seeking a stay ?

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: Tuesday, 12 May 2026 3:30 PM
To: Kathryn McMillan KC <s47E(d) art.gov.au>
Cc: Hayley B s47E(d) <s47E(d) art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Yes both Applicant's have ben served a copy of the s 70 application,

I have now attached the email to Mr Reid referred to in the below correspondence.

Yours sincerely,

Hayley B[redacted]

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) [redacted] art.gov.au

P s47E(d) [redacted]

www.art.gov.au

From: Kathryn McMillan KC <s47E(d) [redacted] art.gov.au>
Sent: Tuesday, May 12, 2026 3:12 PM
To: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Cc: Hayley B[redacted] <s47E(d) [redacted] art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hayley

I have read the attachments to the email from the Respondent of 8 May

Do I understand correctly that the Respondent has served a copy of the s 70 Application upon both the Applicants ?

Also where is the email sent to Mr Simon Reif referred to in their correspondence ?

Thanks

Kathryn

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) [redacted] art.gov.au

P s47E(d) [redacted]

www.art.gov.au

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: Friday, 8 May 2026 4:45 PM
To: Kathryn McMillan KC <s47E(d) art.gov.au>
Cc: Hayley B[redacted] <s47E(d) art.gov.au>
Subject: Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Please see below correspondence from the Respondent in the above matter relating to the application for non disclosure of the two attached documents.

I note that where the respondent was directed to file a revised tender bundle by 10 April 2026, they have advised that two document contained may be the subject non-disclosure due to legal professional privilege and as such have not filed. I confirm they have provided other relevant documents to the applicant's which were inadvertently omitted from the original bundle via a seperate sharefile link.

I confirm neither applicant has provided their position to the respondent's application.

I also note that both applicant's are yet to reply to my recent correspondence seeking confirmation of all submissions that are being relied upon for the severance application. I will follow this up next week.

Please let me know if you would like me to list for a TDH.

Yours sincerely,

Hayley B[redacted]

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

| | |
|---|---|
| View | RE_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders.pdf |

| **Entered By** | |
|---|---|
| **Officer** | Mia D s47E(c) |
| **Date Entered** | 24/05/2026 |
| **Time Entered** | 3:25PM |

**Email File Note**

**Sent By**
**Date Sent**
**Time Sent**

Outlook

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

**From** Kathryn McMillan KC <s47E(d) art.gov.au>
**Date** Tue 12/5/2026 1:57 PM
**To** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

Also which document indicates she is now not seeking a stay ?

**Kathryn McMillan KC**
**Deputy President (part-time)**
**Administrative Review Tribunal**

E s47E(d) art.gov.au
P s47E(d)
www.art.gov.au

Administrative Review Tribunal

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** Tuesday, 12 May 2026 3:30 PM
**To:** Kathryn McMillan KC <s47E(d) art.gov.au>
**Cc:** Hayley B <s47E(d) art.gov.au>
**Subject:** Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Yes both Applicant's have ben served a copy of the s 70 application,

I have now attached the email to Mr Reid referred to in the below correspondence.

Yours sincerely,

**Hayley B**
**Member Support Officer - Legal**
**Administrative Review Tribunal**
**E** s47E(d) art.gov.au
**P** s47E(d)
www.art.gov.au

**From:** Kathryn McMillan KC <s47E(d) art.gov.au>
**Sent:** Tuesday, May 12, 2026 3:12 PM
**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

**Cc:** Hayley B [redacted] <[redacted] art.gov.au>
**Subject:** RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hayley

I have read the attachments to the email from the Respondent  of 8 May

Do I understand correctly that the Respondent has served a copy of the s 70 Application upon both the Applicants ?

Also where is the email sent to Mr Simon Reif referred to in their correspondence ?

Thanks

Kathryn

**Kathryn McMillan KC**

**Deputy President (part-time)**

**Administrative Review Tribunal**

**E** [redacted] art.gov.au

**P** [redacted]

www.art.gov.au

Administrative Review Tribunal

---

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** Friday, 8 May 2026 4:45 PM
**To:** Kathryn McMillan KC <[redacted] art.gov.au>

**Cc:** Hayley B[redacted] <[redacted]art.gov.au>
**Subject:** Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Please see below correspondence from the Respondent in the above matter relating to the application for non disclosure of the two attached documents.

I note that where the respondent was directed to file a revised tender bundle by 10 April 2026, they have advised that two document contained may be the subject non-disclosure due to legal professional privilege and as such have not filed. I confirm they have provided other relevant documents to the applicant's which were inadvertently omitted from the original bundle via a seperate sharefile link.

I confirm neither applicant has provided their position to the respondent's application.

I also note that both applicant's are yet to reply to my recent correspondence seeking confirmation of all submissions that are being relied upon for the severance application. I will follow this up next week.

Please let me know if you would like me to list for a TDH.

Yours sincerely,

**Hayley B**[redacted]

**Member Support Officer - Legal**

**Administrative Review Tribunal**

**E** [redacted]art.gov.au

**P** [redacted]

**www.art.gov.au**

---

**From:** Land, Craig <Craig.Land@ags.gov.au>
**Sent:** Thursday, May 07, 2026 11:53 AM

**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
**Cc:** Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Macdonald, Isabelle <Isabelle.Macdonald@ags.gov.au>
**Subject:** 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

**EXTERNAL EMAIL**

"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."

OFFICIAL: Sensitive//Legal Privilege

Dear Registrar

We refer to the above matters and more specifically to:

1. our client's supplementary submissions dated 19 March 2026 in relation to a severance application made by Mr Simon Reid;
2. an email of today's date from AGS to Mr Simon Reid to which the Tribunal has been copied.

This email has not been copied to the applicants, on the basis that it addresses two documents over which it is submitted that non-disclosure orders should be made under section 70(1) of the *Administrative Review Tribunal Act 2024* (Cth).

**Disclosure of Additional Documents**

In our client's submissions of 19 March 2026, we foreshadowed supplying a revised tender bundle to the Tribunal (and to the applicants) within a reasonable time after the making of orders on Mr Reid's severance application, to account for certain documents which we have identified as having been inadvertently omitted from the previous version of the bundle. Our original suggested date for provision of a bundle was 10 April 2026 – this date was suggested on the basis that the application would be dealt with at a case management hearing on 20 March 2026, which did not occur.

Subject to orders to the contrary, our intention is still to proceed with providing a revised bundle (noting that the exact form of any revised bundle will depend on the Tribunal's orders in relation to the severance application). However, we have been instructed to disclose the additional documents to Mr Reid now in circumstances where:

1. the Tribunal has indicated that it is still considering Mr Reid's application; and
2. our client does not object to the applicants having access to these documents and accepts that they should have been provided previously.

For transparency and completeness, the list of documents being provided to Mr Reid is:

1. Notice and Statement of Reasons for the original banning order against Simon Reid;
2. Briefing note EC22-002103 with relevant attachments;
3. Briefing note EC22-002429 with relevant attachments;
4. Briefing Note EC22-002521 with relevant attachments;
5. Statement of Cassandra Burke dated 16 February 2023 with relevant attachments.

Certain attachments to the above briefing notes have not been produced at this time on the basis of (as appropriate) irrelevance, privilege and pre-existing non-disclosure orders. We refer to our correspondence to Mr Reid of today's date (cc'd to the Tribunal) for details of these attachments and the grounds on which they have not been produced.

All of the documents produced to Mr Reid will be included in the foreshadowed revised bundle in due course.

**Application for non-disclosure orders**

We also **attach:**

1. an application for non-disclosure orders section 70(1) of the *Administrative Review Tribunal Act 2024* (Cth) in relation to two documents which our client submits are subject to claims of legal professional privilege; and
2. copies of the two documents in question.

A copy of our application was provided earlier today to Mr Reid in our email to him (copying the Tribunal and Mrs Vida Reid) to provide him with an opportunity to make submissions on this application.

If we can be of any assistance to the Tribunal in relation to the above or on any other matter, please do not hesitate to contact myself or Karlie Dickinson (cc'd).

Yours sincerely

_____

**Craig Land**
Lawyer
Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

**Important:** This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL: Sensitive//Legal Privilege

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/05/2026 - Member instructions

**File Note**

**Category** Member instructions

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** It wont open…..

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: Tuesday, 12 May 2026 3:30 PM
To: Kathryn McMillan KC <s47E(d) art.gov.au>
Cc: Hayley B s47E <s47E(d) art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Yes both Applicant's have ben served a copy of the s 70 application,

I have now attached the email to Mr Reid referred to in the below correspondence.

Yours sincerely,

Hayley B[redacted]

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

From: Kathryn McMillan KC <s47E(d) art.gov.au>
Sent: Tuesday, May 12, 2026 3:12 PM
To: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Cc: Hayley B[redacted] <s47E(d) art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hayley

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Also where is the email sent to Mr Simon Reif referred to in their correspondence ?

Thanks

Kathryn

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

View RE_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders2.pdf

| **Entered By** | |
|---|---|
| **Officer** | Mia D[redacted] |
| **Date Entered** | 24/05/2026 |
| **Time Entered** | 3:26PM |
| **Email File Note** | |
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

Outlook

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

**From** Kathryn McMillan KC <s47E(d) art.gov.au>
**Date** Tue 12/5/2026 1:31 PM
**To** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

It wont open…..

**Kathryn McMillan KC**
**Deputy President (part-time)**
**Administrative Review Tribunal**

E s47E(d) art.gov.au
P s47E(d)
www.art.gov.au

Administrative Review Tribunal

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** Tuesday, 12 May 2026 3:30 PM
**To:** Kathryn McMillan KC <s47E(d) art.gov.au>
**Cc:** Hayley B <s47E(d) art.gov.au>
**Subject:** Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

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**Member Support Officer - Legal**
**Administrative Review Tribunal**
**E** s47E(d) art.gov.au
**P** s47E(d)
www.art.gov.au

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**Sent:** Tuesday, May 12, 2026 3:12 PM
**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

**Cc:** Hayley B [redacted] <[redacted] art.gov.au>
**Subject:** RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

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**Kathryn McMillan KC**

**Deputy President (part-time)**

**Administrative Review Tribunal**

**E** [redacted] art.gov.au

**P** [redacted]

**www.art.gov.au**

Administrative Review Tribunal

---

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** Friday, 8 May 2026 4:45 PM
**To:** Kathryn McMillan KC <[redacted] art.gov.au>

**Cc:** Hayley B[redacted] <s47E(d) art.gov.au>
**Subject:** Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Please see below correspondence from the Respondent in the above matter relating to the application for non disclosure of the two attached documents.

I note that where the respondent was directed to file a revised tender bundle by 10 April 2026, they have advised that two document contained may be the subject non-disclosure due to legal professional privilege and as such have not filed. I confirm they have provided other relevant documents to the applicant's which were inadvertently omitted from the original bundle via a seperate sharefile link.

I confirm neither applicant has provided their position to the respondent's application.

I also note that both applicant's are yet to reply to my recent correspondence seeking confirmation of all submissions that are being relied upon for the severance application. I will follow this up next week.

Please let me know if you would like me to list for a TDH.

Yours sincerely,

**Hayley B**[redacted]

**Member Support Officer - Legal**

**Administrative Review Tribunal**

**E** s47E(d) art.gov.au

**P** s47E(d)

**www.art.gov.au**

---

**From:** Land, Craig <Craig.Land@ags.gov.au>
**Sent:** Thursday, May 07, 2026 11:53 AM

**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
**Cc:** Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Macdonald, Isabelle <Isabelle.Macdonald@ags.gov.au>
**Subject:** 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

**EXTERNAL EMAIL**

"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."

OFFICIAL: Sensitive//Legal Privilege

Dear Registrar

We refer to the above matters and more specifically to:

1. our client's supplementary submissions dated 19 March 2026 in relation to a severance application made by Mr Simon Reid;
2. an email of today's date from AGS to Mr Simon Reid to which the Tribunal has been copied.

This email has not been copied to the applicants, on the basis that it addresses two documents over which it is submitted that non-disclosure orders should be made under section 70(1) of the *Administrative Review Tribunal Act 2024* (Cth).

**Disclosure of Additional Documents**

In our client's submissions of 19 March 2026, we foreshadowed supplying a revised tender bundle to the Tribunal (and to the applicants) within a reasonable time after the making of orders on Mr Reid's severance application, to account for certain documents which we have identified as having been inadvertently omitted from the previous version of the bundle. Our original suggested date for provision of a bundle was 10 April 2026 – this date was suggested on the basis that the application would be dealt with at a case management hearing on 20 March 2026, which did not occur.

Subject to orders to the contrary, our intention is still to proceed with providing a revised bundle (noting that the exact form of any revised bundle will depend on the Tribunal's orders in relation to the severance application). However, we have been instructed to disclose the additional documents to Mr Reid now in circumstances where:

1. the Tribunal has indicated that it is still considering Mr Reid's application; and
2. our client does not object to the applicants having access to these documents and accepts that they should have been provided previously.

For transparency and completeness, the list of documents being provided to Mr Reid is:

1. Notice and Statement of Reasons for the original banning order against Simon Reid;
2. Briefing note EC22-002103 with relevant attachments;
3. Briefing note EC22-002429 with relevant attachments;
4. Briefing Note EC22-002521 with relevant attachments;
5. Statement of Cassandra Burke dated 16 February 2023 with relevant attachments.

Certain attachments to the above briefing notes have not been produced at this time on the basis of (as appropriate) irrelevance, privilege and pre-existing non-disclosure orders. We refer to our correspondence to Mr Reid of today's date (cc'd to the Tribunal) for details of these attachments and the grounds on which they have not been produced.

All of the documents produced to Mr Reid will be included in the foreshadowed revised bundle in due course.

**Application for non-disclosure orders**

We also **attach:**

1. an application for non-disclosure orders section 70(1) of the *Administrative Review Tribunal Act 2024* (Cth) in relation to two documents which our client submits are subject to claims of legal professional privilege; and
2. copies of the two documents in question.

A copy of our application was provided earlier today to Mr Reid in our email to him (copying the Tribunal and Mrs Vida Reid) to provide him with an opportunity to make submissions on this application.

If we can be of any assistance to the Tribunal in relation to the above or on any other matter, please do not hesitate to contact myself or Karlie Dickinson (cc'd).

Yours sincerely

_____

**Craig Land**
Lawyer
Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

**Important:** This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL: Sensitive//Legal Privilege

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/05/2026 - Internal note

**File Note**

| | |
|---|---|
| **Category** | Internal note |
| **Contact** | |
| **Phone No.** | |
| **Type of Contact** | |
| **Other** | |

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Thanks

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: Tuesday, 12 May 2026 3:30 PM
To: Kathryn McMillan KC <s47E(d) art.gov.au>
Cc: Hayley B s47E <s47E(d) art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

Yes both Applicant's have ben served a copy of the s 70 application,

I have now attached the email to Mr Reid referred to in the below correspondence.

Yours sincerely,

Hayley B[redacted]

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

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Sent: Tuesday, May 12, 2026 3:12 PM
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Hayley

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Thanks

Kathryn

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

| | |
|---|---|
| View | RE_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders3.pdf |

| | |
|---|---|
| **Entered By** | |
| **Officer** | Mia D s47E(c) |
| **Date Entered** | 24/05/2026 |
| **Time Entered** | 3:27PM |
| **Email File Note** | |

**Sent By**
**Date Sent**
**Time Sent**

Outlook

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

**From** Kathryn McMillan KC <s47E(d) art.gov.au>
**Date** Tue 12/5/2026 1:30 PM
**To** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

Thanks

**Kathryn McMillan KC**
**Deputy President (part-time)**
**Administrative Review Tribunal**

E s47E(d) art.gov.au
P s47E(d)
www.art.gov.au

Administrative Review Tribunal

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**Member Support Officer - Legal**
**Administrative Review Tribunal**
**E** s47E(d) art.gov.au
**P** s47E(d)
**www.art.gov.au**

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**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>

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**Deputy President (part-time)**

**Administrative Review Tribunal**

**E** [redacted] art.gov.au

**P** [redacted]

www.art.gov.au

Administrative Review Tribunal

---

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** Friday, 8 May 2026 4:45 PM
**To:** Kathryn McMillan KC <[redacted] art.gov.au>

**Cc:** Hayley B[redacted] <s47E(d) [redacted] art.gov.au>
**Subject:** Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

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I confirm neither applicant has provided their position to the respondent's application.

I also note that both applicant's are yet to reply to my recent correspondence seeking confirmation of all submissions that are being relied upon for the severance application. I will follow this up next week.

Please let me know if you would like me to list for a TDH.

Yours sincerely,

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**Member Support Officer - Legal**

**Administrative Review Tribunal**

**E** s47E(d) art.gov.au

**P** s47E(d)

**www.art.gov.au**

---

**From:** Land, Craig <Craig.Land@ags.gov.au>
**Sent:** Thursday, May 07, 2026 11:53 AM

**To:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
**Cc:** Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Macdonald, Isabelle <Isabelle.Macdonald@ags.gov.au>
**Subject:** 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

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OFFICIAL: Sensitive//Legal Privilege

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A copy of our application was provided earlier today to Mr Reid in our email to him (copying the Tribunal and Mrs Vida Reid) to provide him with an opportunity to make submissions on this application.

If we can be of any assistance to the Tribunal in relation to the above or on any other matter, please do not hesitate to contact myself or Karlie Dickinson (cc'd).

Yours sincerely

_____

**Craig Land**
Lawyer
Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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# AAT Tribunal Record and Case System

## 2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

## 24/05/2026 - Member instructions

**File Note**

**Category** Member instructions

**Contact**

**Phone No.**

**Type of Contact**

**Other**

| | |
|---|---|
| No | Application Incomplete |
| No | Other |
| No | Seeking Adjournment |
| No | Unable to Attend Hearing |

| | |
|---|---|
| No | Refer to Deputy Registrar |
| No | Relisting Required |

**Listing Details**

**Note** Hayley

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Kathryn

Kathryn McMillan KC

Deputy President (part-time)

Administrative Review Tribunal

E s47E(d) art.gov.au

P s47E(d)

www.art.gov.au

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: Friday, 8 May 2026 4:45 PM
To: Kathryn McMillan KC <s47E(d) art.gov.au>
Cc: Hayley B s47E <s47E(d) art.gov.au>
Subject: Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Application for non-disclosure orders [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

Hey DP,

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I note that where the respondent was directed to file a revised tender bundle by 10 April 2026, they have advised that two document contained may be the subject non-disclosure due to legal professional privilege and as such have not filed. I confirm they have provided other relevant documents to the applicant's which were inadvertently omitted from the original bundle via a seperate sharefile link.

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Please let me know if you would like me to list for a TDH.

Yours sincerely,

Hayley B s47E

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) art.gov.au

View RE_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence.pdf

| | |
|---|---|
| **Entered By** | |
| **Officer** | Mia D s47E(c) |
| **Date Entered** | 24/05/2026 |
| **Time Entered** | 3:28PM |
| **Email File Note** | |
| **Sent By** | |
| **Date Sent** | |
| **Time Sent** | |

Outlook

# RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

**From** Land, Craig <Craig.Land@ags.gov.au>
**Date** Thu 7/5/2026 9:40 AM
**To** simon reid <reid.simon4@gmail.com>; MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
**Cc** vida Reid <vida reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Macdonald, Isabelle <Isabelle.Macdonald@ags.gov.au>

3 attachments (589 KB)
20260507 Ltr to S Reid re p(68792525.1).pdf; 20260507 Section 70 applica(68975742.1).pdf; iManage Share - Instructions for external recipients on how to set up a Share account.docx;

**EXTERNAL EMAIL**
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."

OFFICIAL

Dear Mr Reid

We refer to your email dated 21 April 2026 and to the Tribunal's email dated 22 April 2026 in this matter. This email has been copied to Mrs Reid and to the Tribunal.

Please find **attached:**

a. a letter of today's date for your attention in response to your email dated 21 April 2026; and
b. an application to the Tribunal under section 70(1) of the *Administrative Review Tribunal Act* for non-disclosure orders over two documents which our clients claim are subject to legal professional privilege.

As you will see from our correspondence, our intention remains to provide a revised tribunal bundle in due course once ordered to do so by the Tribunal. However, our client has no objection (subject to the grounds set out in our letter) to providing the relevant documents which were inadvertently omitted from the original tribunal bundle to you immediately as requested.

You should shortly receive a link from AGS' file sharing platform, iManage Share, to copies of the documents referred to in our letter. Please find **attached** instructions for how to access the files – if you have any issues doing this, please let us know as soon as possible.

In relation to the two documents over which our client seeks non-disclosure orders, you may wish to make submissions on this application to the Tribunal by way of return email (copying us). Copies of the two documents in questions have been separately emailed to the Tribunal along with a copy of the application for its consideration.

Kind regards

**Craig Land**
Lawyer

Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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OFFICIAL

---

**From:** Land, Craig
**Sent:** 22 April 2026 15:43
**To:** 'simon reid' <reid.simon4@gmail.com>
**Cc:** vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
**Subject:** RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

Dear Mr Reid

Thank you for your email.

We are in the process of taking instructions on the issues raised by your email and will respond as soon as possible.

Kind regards

_____

**Craig Land**
Lawyer
Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

**Important:** This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

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**From:** simon reid <reid.simon4@gmail.com>
**Sent:** 21 April 2026 00:55
**To:** Land, Craig <Craig.Land@ags.gov.au>
**Cc:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
**Subject:** Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

OFFICIAL

Dear Mr Land
Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission

ART reference: 2023/3363
(and related proceedings 2023/3361 and 2023/4494)

We write in relation to Mr Reid's addendum reply of 19 March 2026, and the Commission's supplementary submissions of the same date which preceded it.

The Commission's supplementary submissions proposed that an updated tender bundle would be served by 10 April 2026.

Mr Reid's addendum reply sought directions reflecting that date, together with a supplementary disclosure statement and an express statement as to whether any Simon-specific decision brief, executive brief, delegate submission, minute, or equivalent record exists (paragraphs 14(a) to (d)).

The 10 April 2026 date has passed. The updated bundle has not been received. No supplementary disclosure statement has been provided. The question whether a Simon-specific decision brief exists remains unanswered.

Could you please advise whether the non-delivery is the result of an administrative oversight, or whether there is a particular reason for the delay. If the latter, we would be grateful to understand what it is and when service can be expected.

Mr Reid's addendum reply set out why the material is significant.

Much of his case turns on whether the Commission conducted an individualised assessment of his personal suitability to provide supports or services to people with disability, as s 73ZN(2)(a)(iii) of the NDIS Act requires.

It is Mr Reid's hope that, when produced, the documents will contain a comprehensive individualised assessment of his personal suitability, separate and distinct from the assessment of Mrs Vida Reid and of Forward Focused Group Pty Ltd.

To meet the statutory threshold, such an assessment would need to:

1. identify Mr Reid's personal conduct rather than the conduct of related persons or companies attributed to him through key-personnel principles;
2. consider the matters prescribed by the NDIS Rules for the purposes of s 73ZN(2)(a)(iii);
3. engage with the specific time periods during which Mr Reid held directorships of each relevant entity, as established by the ASIC records the Commission itself has tendered;
4. engage substantively with the submissions filed on Mr Reid's behalf by Tom & Co Legal on 30 November 2022;
5. consider the proportionality of the specific period of banning as it applies to Mr Reid individually; and
6. identify the evidentiary basis supporting the s 73ZN(2)(a)(iii) finding of personal unsuitability independently of the prosecution material lodged against Mrs Reid.

Point 6 has particular weight in light of the Commonwealth Director of Public Prosecutions' discontinuance of all four charges against Mrs Reid for no evidence in February 2024.

Mr Reid himself was not charged at any stage. The Statement of Material Facts lodged in support of the charges against Mrs Reid was material the decision-makers expressly relied upon (paragraph 11(f)(v) and paragraph 29(h) of the internal review statement of reasons).

An individualised assessment of the kind described above is the natural place for the Commission to identify how its findings against Mr Reid are sustained independently of that material.

Mr Reid reserves his position on seeking further Tribunal directions in the terms

foreshadowed in his addendum reply, and reserves his right to invite the Tribunal to draw appropriate inferences from the content of the documents when served, including from the continuing absence of any document stating whether a Simon-specific decision brief exists.

A copy of this letter is provided to the Tribunal by reason of its pending consideration of directions on severance and programming.
Yours faithfully

Simon reid

OFFICIAL

On Mon, 6 Apr 2026 at 5:24 pm, simon reid <reid.simon4@gmail.com> wrote:

> Hi all.
>
> Just checking in to see if any decision had been made by the tribunal in regards to this matter?
>
> Regards
> Simon reid.
>
> On Fri, 20 Mar 2026 at 7:21 am, Land, Craig <Craig.Land@ags.gov.au> wrote:
>
> > OFFICIAL
> >
> > Dear Hayley
> >
> > Thank you for the information below.
> >
> > For the avoidance of doubt, we would be grateful if the Tribunal could confirm whether the reference in your email to the respondent's additional submissions dated 8 and 9 March 2026 should instead be a reference to the respondent's submissions dated (a) 17 September 2025, and (b) 19 March 2026.
> >
> > We otherwise note the receipt of additional submissions from Vida Reid and Simon Reid overnight. We do not object to the Tribunal having regard to these additional submissions as part of its consideration of the severance applications and any timetabling orders.
> >
> > If we can be of any further assistance to the Tribunal, please let us know.
> >
> > Yours sincerely
> >
> > _____
> > **Craig Land**
> > Lawyer
> > Australian Government Solicitor
> > **T** 03 924 21469
> > craig.land@ags.gov.au
> >
> > Find out more about AGS at http://www.ags.gov.au
> >
> > **Important:** This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

**From:** MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
**Sent:** 19 March 2026 17:29
**To:** Land, Craig <Craig.Land@ags.gov.au>; vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; simon reid <reid.simon4@gmail.com>
**Cc:** Hayley B[redacted] <s47E(d) [redacted]art.gov.au>
**Subject:** Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Parties,

Thank you for your responses, please be advised that the hearing scheduled for 20 March 2026 is vacated.

The Tribunal acknowledges that Ms Vida Reid has not provided consent to the Tribunal's proposal and as such is granted leave to write to the Tribunal and seek an oral hearing including reasons within **7 days**. If a reply is not received from Ms Reid by **26 March 2026**, the Tribunal will proceed to decide the matters on the papers.

I confirm that I have provided all submissions to Deputy President, including Mr Reid's directions regarding the production orders and programming directions in matter **2023/336,** and the Respondent's additional submissions dated 8 and 9 March 2026. Should there be any issue with these additional submissions, the Tribunal will contact parties.

Should parties have any questions or concerns please feel free to contact me. I appreciate parties' assistance and patience in these proceedings.

Yours sincerely,

**Hayley B**[redacted]

**Member Support Officer - Legal**

**Administrative Review Tribunal**

**E** s47E(d) [redacted]art.gov.au

**P** s47E(d) [redacted]

**www.art.gov.au**

OFFICIAL

**From:** Land, Craig <Craig.Land@ags.gov.au>
**Sent:** Thursday, March 19, 2026 4:17 PM
**To:** Sydney Registry <Sydney.Registry@art.gov.au>
**Cc:** vida_reid@yahoo.com <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>; simon reid <reid.simon4@gmail.com>
**Subject:** RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Hayley

Please accept our apologies for the lateness of this response.

The respondent agrees to the proposal to have the severance applications determined on the papers.

We **attach** short additional submissions for the Tribunal's consideration, solely in response to the additional submissions of the applicants dated 8 and 9 March 2026. These supplement, and should be read alongside, the respondent's previous submissions dated 17 September 2025 on the issue of severance.

If we can be of any further assistance to the Tribunal, please do not hesitate to let us know.

Yours sincerely

**Craig Land**
Lawyer
Australian Government Solicitor
**T** 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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**From:** simon reid <reid.simon4@gmail.com>
**Sent:** 19 March 2026 14:47
**To:** Brisbane Registry <brisbane.registry@art.gov.au>
**Cc:** vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Land, Craig <Craig.Land@ags.gov.au>; s47E(d) art.gov.au
**Subject:** Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Subject: ART Nos. 2023/3363 and 2023/4494 – Response to Tribunal correspondence dated 9 March 2026

Dear Tribunal,

Thank you for your correspondence.

In relation to ART No. 2023/3363, Mr Simon Reid consents to the severance application being determined on the papers. Mr Reid supports severance for the reasons set out in his short directions submissions filed 6 March 2026.

Mr Reid notes that his directions submissions also seek production orders and programming directions in ART No. 2023/3363 which go beyond the severance question. Mr Reid respectfully requests that those matters be addressed at the earliest opportunity, whether at the hearing listed for 20 March 2026 or by separate directions on the papers.

In relation to ART No. 2023/4494, Forward Focused Group Pty Ltd consents to determination on the papers and relies on its position statement already filed. FFG remains on foot but does not seek priority listing ahead of the individual matters.

I note the reference in the Tribunal's correspondence to "20 March 2025" and understand this is intended to refer to 20 March 2026.

Yours sincerely,

Simon Reid

Applicant (ART No. 2023/3363)

Director, Forward Focused Group Pty Ltd (ART No. 2023/4494)

On Tue, 17 Mar 2026 at 10:13 am, Brisbane Registry <brisbane.registry@art.gov.au> wrote:

> Dear Parties,
>
> The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494.
>
> Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.
>
> Pending the disposal of that application, the above matters will be listed for a substantive hearing.
>
> Should parties have any questions or concerns, please contact the Tribunal by way of reply email.
>
> Yours sincerely,
>
> **Hayley B**
> Member Support Officer - Legal
>
> **Administrative Review Tribunal**
>
> T: 1800 228 3 33
> E: brisbane.registry@art.gov.au
>
> www.art.gov.au
>
> Your enquiry is important to us.
> Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests.

We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

*The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.*

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Your enquiry is important to us.
Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests.
We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

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